MILITARY ENGINEER SERVICES

NOTICE INVITING TENDER (NIT)

1. A tender is invited for the work as mentioned in Appendix 'A' to this NOTICE INVITING TENDER (NIT).

2. The work is estimated to cost as indicated in aforesaid Appendix 'A'. This estimate, however, is not a guarantee and is merely given as a rough guide and if the work costs more or less, a tenderer/bidder will have no claim on that account.

3. The work is to be completed within the period as indicated in aforesaid Appendix 'A' in accordance with the phasing, if any, indicated in the tender from the date of handing over site, which will be on or about two weeks after the date of acceptance of tender.

4. Contractors whose names are on the MES approved list and within whose financial category the estimated amount would fall and unenlisted contractors may submit tender/bid subject to other criteria mentioned in Appendix A. However in case of term contracts, enlisted contractors of Class SS to E may submit tender. Not more than one tender shall be submitted/uploaded by one contractor/ firm. Under no circumstances will a father and his son(s) or other close relations who have business dealing with one another be allowed to tender/bid for the same contract as separate competitors. Two firms shall be deemed to have business dealing if any of the partners/proprietor/director is common among both of them. A breach of this condition will render the tenders/bids of both the parties liable for rejection.

5. **Garrison Engineer (I) Campbell Bay, Great Nicobar – 744 302** will be the Accepting Officer here-in-after referred to as such for the purpose of this contract.

6. Not more than one tender/bid shall be submitted/uploaded by one bidder firm. Under no circumstances will a father and his son(s) or other close relations who have business dealing with one another be allowed to tender/bid for the same tender as separate competitors. A breach of this condition will render the tenders/bids of both the parties liable for rejection.

7. The Technical Bid and Financial Bid (Cover-1 and Cover-2) shall be uploaded by the contractor on or before the date & time mentioned in **NIT**. A scanned copy of DD with enlistment details and other documents as specified in Appendix A shall be uploaded as Cover-1 (Technical bid) of the tender on e-tendering portal. DD is refundable in case the contractor is not considered eligible in technical evaluation of Cover 1 resulting in non-opening of Cover1. The applicant contractor shall bear the cost of bank charges for procuring and encashing the DD including revalidation of DDs and shall not have any claim from Government whatsoever on this account.

8. Tender form and conditions of contract and other necessary documents shall be available on website defproc.gov.in for download and shall form part of contract agreement in case the tender/bid is accepted.

9. In case of MES enlisted contractor who has not executed the Standing Security Bond and un enlisted contractor, the Cover-I shall be accompanied by Earnest Money for the amount mentioned in Appendix 'A' in the form of deposit at call receipt in favour of GE (I) Campbell Bay by a Scheduled Bank or in received treasury Challan the amount being credited to the revenue deposit of the concerned GE (I) Campbell Bay. The GE (I) will return the Earnest Money, wherever applicable, to all unsuccessful tenderers/bidders by endorsing an authority on the deposit at call receipt for it's refund, on receipt of intimation from the Accepting Officer to do that.

10. In case of successful contractor i e the lowest contractor having submitted EMD, he shall have the option of converting the EMD instrument into part of the Performance Security to be deposited by him within 28 days from the receipt of intimation of acceptance of tender from Accepting Officer.

11. Sample of materials and stores to be supplied by the contractor will also be available for inspection by the bidder at the office of GE (I) Campbell Bay during working hours. The bidder is advised to visit the site of work by making prior appointment with GE (I), who is the Executing Agency of the work. The bidder shall be deemed to have full knowledge of all relevant documents, samples, site etc whether he has inspected them or not.

12. Any bid which proposes any alteration to any of the conditions laid down or proposes any other new condition whatsoever, is liable to be rejected.

13. The uploading of bid by a bidder implies that bidder has read this notice and the conditions of contract and has made himself aware of the scope and specification of work to be done and of the conditions and rates at which stores (as applicable) etc will be issued to him and local conditions and other factors having bearing on the execution of the work.

14. The bidder must be in possession of a copy of the MES Schedule (SSR) (Part-I & Part-II of latest edition) including amendments and errata thereto.

15. Accepting Officer does not bind himself to accept the lowest or any tender/bid or to give any reason for not doing so.

16. The Accepting Officer reserves the right to accept a tender submitted by a Public Undertaking/Small & Medium Enterprises (SMEs), giving a price preference/purchase preference over other tender(s)/bids which may be lower, as are admissible under the Government Policy. No claim for any compensation or otherwise shall be admissible for such tenderer/bidder whose tender/bid is rejected.

17. The **Notice Inviting Tender (NIT)** including Appendix 'A' and Annexures thereto, if any, shall form part of the contract agreement.

Signature of Contractor
Dated :

AGE (Contracts)
for Accepting Officer

APPENDIX 'A' TO NOTICE INVITING TENDER (NIT)
MILITARY ENGINEER SERVICES

Garrison Engineer (I) Campbell Bay, Army Land, Great Nicobar Islands, Campbell Bay – 744 302 on behalf of President of India invites e-tender as per the terms and condition laid down in the tender documents uploaded on the MES web site https://defproc.gov.in from eligible enlisted Contractors of MES and enlisted / un-enlisted Contractors working with other Government Departments meeting eligibility criteria for the under mentioned work:-

Sl No	Details	Particulars
1	Name of Work	**SPECIAL REPAIRS OF ROAD FROM PERIPHERY ROAD TO HRDF SITE, PASSAGE OF AGE E/M OFFICE, SECURITY FENCE AROUND BAAZ HOUSE AT INS BAAZ, CAMPBELL BAY UNDER GE(I) CAMPBELL BAY (TENDER ID : 2024_MES_666387_1)**
2	Estimated cost of Work	**₹ 28.50 Lakhs** (at par Market)
3	Period of completion	**180 Days**
4	Cost of Tender documents & Garrison Engineer	**Rs. 500/-** in the shape of Demand Draft/ Bankers Cheque from any scheduled Bank in favour of GE (I) Campbell Bay payable at Campbell Bay (Note: In case of retendering, the contractor who had quoted in the previous call is not required to submit the cost of tender)
5	Website/ portal address	www.defproc.gov.in
6	Type of Contract	The tender shall be based on drawings, specifications, IAFW-1779-A & GCC (IAFW-2249) with Schedule 'A' (list of items of work) to be quoted by contractor.
7	Timeline details :	
	(a) Bid submission start date	Refer critical dates on the website.
	(b) Bid submission end date	
	(c) Date of bid opening	
8	Eligibility Criteria:	
	(a) For MES enlisted Contractors	Contractors shall be enlisted with MES in **Class 'D'** and above and **category a(i)** subject to satisfactory remarks wrt performance in respect of wks in hand as reflected in Workload return (WLR) or any other report circulated by competent engineer authority.
	(b) For Contractors not enlisted with MES	(i) Contractor not enlisted with MES should meet the enlistment criteria of **'D' Class** MES contractors & **category a(i)** i.e. with regard to having satisfactorily completion of requisite value works, with central/ state Government/ Central/ State PSUs/ AWHO/ AFNHB/ CGEWHO/ DGMAP, Annual turnover, Bank Solvency, working capital, and other requirements given in Para 1.4 & 1.5 of section 1 of MES Manual on Contracts – 2020 as available in all MES Formations as well as MES website www.mes.gov.in (ii) Not carrying adverse remarks in Work Load Report (WLR) or any other similar report circulated by any competent authority if already working in MES. (iii) Not suspended debarred black listed (either permanently or temporarily) from participating in any bid or for business dealing by any Central / State Government Department or any Central / State Government PSU or any Autonomous Body under Central / State Government or any Local Body as on the Bid submission end date. (iv) Details of works completed and under progress in MES be submitted in the following format:

Srl No	CA No. & Name of Work	Value of CA	Date of commencement	Date of completion	Extended Date of completion

(v) Un-enlisted contractor who have secured two works in MES should get themselves registered in the appropriate designated class with any Registering Authority, else the firm will not be eligible for participation in the tender unless the firm is enlisted with MES.

9	Tender issuing and Accepting Officer	Garrison Engineer (I) GE (I) Campbell Bay, Army Land Great Nicobar Islands, Campbell Bay – 744 302 Email Id: garrisonengineercampbellbay@gmail.com
10	Executing Agency	**GE (I) Campbell Bay**
11	Earnest Money	**₹ 57,000.00 (Rupees Fifty seven thousand only)** in favour of GE(I) Campbell Bay (in form of Deposit at call receipt. FDR not acceptable)

Notes.

1. In case after opening of Cover 1, the number of MES enlisted contractors of eligible class as well as un-enlisted contractors if any, fulfilling the other eligibility criteria given in NIT is less than 7(Seven), applications in respect of MES contractors one class or two classes (in case of remote and difficult areas to be decided as per list circulated by CE commend/ ADG) below the eligible class shall be also be considered subject to fulfilment of other eligibility criteria given in the NIT. Therefore MES contractor's one class below (two classes below in case of remote and difficult areas) may also bid for this tender. Such contractors (contractors of one/ two classes below the eligible class) shall not be considered in case their present residual work in hand is more than **FIVE TIMES** their present tendering limit. However in case such contractors fulfill the criteria of upgradation to be stipulated eligible class based on past experience of completed works (individual work experience and/or average annual turnover, as applicable) and financial soundness (solvency/ financial soundness and working capital), the ceiling of present residual work will not apply and they will be considered for issue of tender. Such bidders shall upload in their Cover-I bid details related to residual work in hand like details of works in hand showing names of work, names of Accepting Officer, Contract amounts, dates of commencement and completion (stipulated) and progress as on bid submission end date. Such contractors, if claim to fulfill the criteria of upgradation shall also upload the requisite information/ documents in support of upgradation. These details shall be verified by the Tender Issuing Authority from concerned formations in case bids of such contractors are considered for evaluation.

2. In case after opening of cover 1 the number of MES enlisted contractors of eligible class as well as un-enlisted contractors if any fulfilling the other eligibility criteria given in NIT are 7(Seven) or more application of only those one class below the eligible class bidders shall be considered. Who have previously completed similar works satisfactorily and are meeting the criteria of upgradation in respect of past experience of completed works (individual work experience and /or average annual turnover as applicable) and financial soundness (solvency / financial soundness and working capital) as per details given in Manual of Contracts. Therefore such contractors shall upload the requisite information / documents in the Cover-1.

3. Unenlisted contractor shall be considered provided he meets the criteria. Foreign firms shall not be eligible for this tender. However Indian Firms having foreign national/ Indian nationals staying abroad/ Indian national having taken foreign citizenship as director (s) shall be considered subject to security clearance from the concerned authorities.

4. Contractors enlisted with MES will upload following documents in Cover 1 for checking eligibility:-

(a) Application for tender on Firm's letterhead.
(b) Enlistment letter issued by the Registering Authority duly renewed for the cycle period in vogue.
(c) Scanned copy of DD/ Bankers cheque towards cost of tender and EMD instrument in case SSD bond is not signed at the time of registration.
(d) Any other documents required as described in this Appendix

5. Contractors not enlisted with MES will be required to upload following documents in Cover 1 for checking eligibility:-

(a) Application for tender on Firm's letterhead.
(b) Scanned copy of DD/ Bankers Cheque toward cost of tender and Earnest Money Deposit (EMD) instrument.

(c) Copy of police verification Repost / Police Clearance Certificate/ Character Certificate from the Police Authority of the area where the registered office of the firm is located/ notarized copy of valid passport of Proprietor / each Partner / each Director.

(d) All documents required for enlistment in MES for the class mentioned in Para 8(b) above as per Para 1.5 of Section 1 of MES Manual of Contracts 2020.

(e) Details of works being executed in MES if any.

(f) Any other documents required as described in this Appendix.

6. Tenders not accompanied by scanned copies of requisite DD/ Bankers Cheque towards cost of tender and earnest money (as applicable) in cover 1 shall not be considered for validation of 'T' bid and their Financial Bids will not be opened:-

7. Contractor should ensure that their original physical DDs and Earnest Money Deposit (EMD) instruments (as applicable) reach the office of Accepting Officer within 05 days of bid submission end date (* The number of days to be mentioned shall be as decided by the Accepting Officers. But it shall not be less than 5 days failing which following action shall be taken:-

(a) In case of tenders from and enlisted contractor of MES where scanned copies of requisite DD/ Bankers Cheque towards cost of tender have been uploaded in Cover 1 but physical copies are not received within the stipulated period their financial bids (cover 2) will be opened. However non submission of physical copies of cost of tender shall be considered as willful negligence of the tenderer with ulterior motives and such tenderer shall be banned from bidding for a period of six months commencing from the date of opening of Financial Bid (Cover 2).

(b) In case of tenders from unenlisted contractor where scanned copies of requisite DD/ Bankers Cheque towards cost of tender have been uploaded in cover 1 but physical copies are not received within the stipulated period their financial bids (Cover 2) will not be opened. Name of Such Contractors along with complete address shall be circulated for not opening of their bids for a period of Six months commencing from the date of opening of Financial Bid (Cover 2)

(c) In case of tenders from enlisted and unenlisted contractors where scanned copies of instruments for Earnest Money Deposit (as applicable) have uploaded in cover 1 but the same are not received in physical form within stipulated period. Such Tenders shall not qualify for opening of financial bid (Cover 2)

8. Contractor will not be allowed to execute the work by subletting or through power of attorney to a third party / another firm on his behalf. However a contractor can execute the work through power of attorney to sons/ daughters/ spouse of proprietor / partner / Director and firm's own employees director project manager provided they are not having a separate enlisted firm in MES in their name as Proprietor / Partner/ Director.

9. After opening of cover 1 and during its technical evaluation in case any deficiency is notice in the documents required to be uploaded by the tenderers as per NIT a communication in the form of e-mail/ SMS/ Speed Post etc shall be sent to the contractor to rectify the deficiency within a period of seven days from date of communication failing which their financial bid (Cover 2) shall not be opened and contractor shall not have claim on the same.

10. Invitation for e-tender documents not constitute any guarantee for validation of Technical bid and subsequent opening of financial bid of any applicant / bidder merely by virtue of enclosing DD. Accepting Officer reserves the right to reject the Technical bid and not to open the financial bid of any applicant/ bidder. Technical bid validation shall be decided by the Accepting Officer based on eligibility of the firm as per criteria given in this Appendix. Tenderer / bidder will be informed regarding non-validation of his Technical bid assigning reasons therefore through tender evaluation report which shall be uploaded on the website. Such tenderer if desired may appeal to the next higher Engineer Authority (NHEA) viz HQ CE (A&N) Zone, Port Blair on email id cezan2-mes@nic.in with copy to the Accepting Officer on email before the scheduled date of opening of Cover 2. NHEA shall decide the matter within a period of seven working days from the date of receipt of appeal. The decision of NHEA shall be final and binding. The tenderer / bidder shall not be entitled for any compensation whatsoever for rejection of his bid.

11. In case an unenlisted contractor is already executing works in MES. He shall not be considered eligible for the subject tender if the total value of such is more than twice the tendering limit of the MES Class of contractor for which it is eligible. For this purpose details of the works being executed by such a contractor shall be uploaded in the Cover-1 of the bid and shall be checked / verified by the Accepting officer.

12. In case the BOQ is revised through the corrigendum and the bidder has failed to quote on revised BOQ (ie he has quoted on pre revised BOQ) such bid shall be treated as willful negligence by the bidder and his quotation shall be considered non-bonafide. In such case the lowest tender shall be determined from amongst the valid/ bonafide bids only. Accepting officer may decide whether to re-tender or consider the lowest bonafide tender for acceptance.

13. Revoking the offer or revising the rates upward of offering voluntary reduction by the lowest tenderer after opening of Cover 2 shall be considered as a wilful default. For this default a penalty of an amount equal to Earnest money shall be levied. In case of an unenlisted tenderer Earnest Money deposited by him shall be forfeited. In case of MES enlisted tenderer having deposited the Standing Security Bond an amount equal to the earnest money stipulated in the NIT shall be notified to the tenderer for depositing through MRO consideration of such tenderer in tender evaluation for future work shall remain suspended till the aforementioned amount is deposited in the Government Treasury. No other disciplinary / administrative action shall be taken against such tenderers. In such a situation the next lowest offer shall not be considered for acceptance instead retendering shall be resorted to in a transparent and fair manner and the defaulting tenderer and his related firm if any shall not be eligible for this tender in second call or subsequent calls.

14. Tender to related firms shall not be issued simultaneously. Firms shall be termed as related if proprietor / one or more Partner/ Directors are common Decision of Accepting Officer on issue/ deny the tender to any one of the related firm shall be final and binding.

Signature of Contractor

(Sabin Raja)
JE (QS&C)
Offg AGE (Contracts)
for Accepting Officer

File No : 8146/E8

Dated : 10 July 2024

Garrison Engineer (I)
Military Engineer Services
Army Land, Great Nicobar
Campbell Bay- 744 302

ANNEXURE TO NIT

1.4 **Criteria for Fresh Enlistment & Upgradation**

(a) **Criteria for Fresh Enlistment in various classes shall be as under :-**

Class	**Past Experience of Completed Works in Last 5 years & Average Annual Turn Over (in Rs)**	**Financial Soundness (in Rs)**
(1)	(2)	(3)
'SS'	(a)Two works costing not less than 12.00 crore each. or One work costing not less than 20 crore and (b)Average annual turnover for two consecutive years shall not be less than 20 crore	(a) Solvent upto 8.00 crore. or Financially sound for engagement upto 40.00 crore (b)Working capital not less than 75.00 lakh
'S'	(a)Two works costing not less than 7.50 crore each. or One work costing not less than 12 crore and (b)Average annual turnover for two consecutive years shall not be less than 12 crore	(a) Solvent upto 4.00 crore. or Financially sound for engagement upto 15.00 crore (b)Working capital not less than 50.00 lakh
'A'	(a)Two works costing not less than 4.00 crore each. or One work costing not less than 6.00 crore and (b)Average annual turnover for two consecutive years shall not be less than 6.00 crore	(a) Solvent upto 2.00 crore. or Financially sound for engagement upto 7.50 crore (b)Working capital not less than 30.00 lakh
'B'	(a)Two works costing not less than 1.50 crore each. or One work costing not less than 2.50 crore and (b)Average annual turnover for two consecutive years shall not be less than 300.00 lakh	(a) Solvent upto 100.00 lakh. or Financially sound for engagement upto 3.00 crore (b)Working capital not less than 12.00 lakh
'C'	(a)Two works costing not less than 50.00 lakh each. or One work costing not less than 80.00 lakh and (b)Average annual turnover for two consecutive years shall not be less than 100.00 lakh	(a) Solvent upto 40.00 lakh. or Financially sound for engagement upto 100.00 lakh (b)Working capital not less than 10.00 lakh

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(1)	(2)	(3)
'D'	(a)Two works costing not less than 25.00 lakh each. or One work costing not less than 40.00 lakh and (b)Average annual turnover for two consecutive years shall not be less than 50.00 lakh	(a) Solvent upto 20.00 lakh. or Financially sound for engagement upto 50.00 lakh (b)Working capital not less than 7.50 lakh
'E'	(a)Three works costing not less than 7.50 lakh each. or Two works costing not less than 10.00 lakh each or One work costing not less than 20.00 lakh and (b)Average annual turnover for two consecutive years shall not be less than 25.00 lakh	(a) Solvent upto 10.00 lakh. or Financially sound for engagement upto 25.00 lakh (b)Working capital not less than 5.00 lakh

(b) **Criteria for upgradation in various classes shall be as under :-**

Class	Past Experience of Completed Works in Last 5 years	Financial Soundness	Limit of minimum reserves (See Note 5 below)
(1)	(2)	(3)	(4)
'SS'	(a)Two works costing not less than 12.00 crore each. or One work costing not less than 20 crore and (b)Average annual turnover for two consecutive years shall not be less than 20 crore	(a) Solvent upto Rs 8.00 crore. or Financially sound for engagement upto 40.00 crore (b)Working capital not less than 75.00 lakh	Rs 12.00 lakh
'S'	(a)Two works costing not less than 7.50 crore each. or One work costing not less than 12 crore and (b)Average annual turnover for two consecutive years shall not be less than 12 crore	(a) Solvent upto 4.00 crore. or Financially sound for engagement upto 15.00 crore (b)Working capital not less than 50.00 lakh	Rs 80.00 lakh

ANNEXURE TO NIT (CONTD)

(1)	(2)	(3)	(4)
'A'	(a)Two works costing not less than 4.00 crore each. or One work costing not less than 6.00 crore and (b)Average annual turnover for two consecutive years shall not be less than 6.00 crore	(a) Solvent upto 2.00 crore. or Financially sound for engagement upto 7.50 crore (b)Working capital not less than 30.00 lakh	Rs 75.00 lakh
'B'	(a)Two works costing not less than 1.50 crore each. or One work costing not less than 2.50 crore and (b)Average annual turnover for two consecutive years shall not be less than 300.00 lakh	(a) Solvent upto 100.00 lakh. or Financially sound for engagement upto 3.00 crore (b)Working capital not less than 12.00 lakh	Rs 60.00 lakh
'C'	(a)Two works costing not less than 50.00 lakh each. or One work costing not less than 80.00 lakh and (b)Average annual turnover for two consecutive years shall not be less than 100.00 lakh	(a) Solvent upto 40.00 lakh. or Financially sound for engagement upto 100.00 lakh (b)Working capital not less than 10.00 lakh	Rs 25.00 lakh
'D'	(a)Two works costing not less than 25.00 lakh each. or One work costing not less than 40.00 lakh and (b)Average annual turnover for two consecutive years shall not be less than 50.00 lakh	(a) Solvent upto 20.00 lakh. or Financially sound for engagement upto 50.00 lakh (b)Working capital not less than 7.50 lakh	Rs 12.50 lakh

Notes :-

1. Authority competent to enlist shall be called Registering Authority.

2. The categories for enlistment shall be decided on the basis of nature of works executed by Contractor. Contractors who have experience of executing of Prefab/ Pre-Engineered Structures and fulfill other criteria, shall also be eligible for enlistment in category a(i). At the time of renewal, contractors already enlisted in Cat a (i) Building & Roads, shall be enlisted in Cat a (i) Building works & a(v) Roads. In case of E class contractors, Registering Authority shall issue suitable amendments to enlistment letters in respect of separate categories for buildings works ie a(i) and roads ie a(v) without any application from contractor.

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3. For enlistment/ upgradation/ renewal/ reclassification etc, in category (b) Electrical Engineering Works (i) to (iii), a declaration/ undertaking shall be obtained from the applicant contractor in affidavit from whereby the contractor shall undertake to either obtain valid Electrical License of required class in its name or engage an agency having valid Electrical Licence of required class through MoU (Memorandum of Understanding) for execution of all electrical works as well as works under category (c) [including its sub categories (i) to (vii)] and the category (d)(v) to the extent Rule 29 under Part lii of Central Electricity Authority (Measures Relating to Safety and Electric Supply) Regulations, 2010 is applicable either in full or part of the scope of work of contract awarded to him and that all such electrical works shall be executed by him through such agency only (either self or other agency) having valid Electrical Licence of required class from State /Union Territory Authorities where works are to be executed.

4. Working capital with the Contractor shall be judged from balance sheet/bank's certificate as per Appendix 1.3 / bank statement for last 6 month/overdraft or cash credit facility from bank/fixed deposit receipts with banks.

5. The requirements of minimum reserves are applicable for enlistment related process of existing contractors i.e. Change in constitution/Renewal/Reclassification (Revision in Monetary Limit) etc, if they have contracts in hand not having Performance Security provisions. till their contracts are completed and their Final Bills do not become MINUS. For this, these contractors will submit affidavit on non-judicial stamp paper of appropriate value (minimum value Rs. 100) declaring that all their contracts without Performance Security provisions are completed and the Final Bills are not MINUS. Immovable/movable property (minimum reserve) shall be exclusively in the name of Contractor and not in the name of family members/relatives/others. In case of Limited companies, immovable/movable property (considered for minimum reserve) shall be exclusively in the name of Company and should be reflected in the Balance Sheet of the Company.

6. "Last two consecutive years" shall mean immediate last two consecutive financial years reckoned from the date of application for upgradation. Two consecutive years for the purpose of fresh enlistment shall mean any of the two consecutive financial years in last Five Financial Years preceding the date of application for enlistment. For documents in support of works experience, TDS certificate for IT/Sales Tax/ VAT/GST shall also be asked from applicant firms. All documents related to works experience and turnover (except Form 26 AS and portal generated GST return) shall be got independently verified from the client/issuing authority. Registering Authority may seek clarification from the Chartered Accountant in case of any doubt. Annual turnover to be considered for enlistment purpose shall mean the turnover from all businesses carried out by the applicant firm in relation to construction work related to categories of works for which the enlistment is being sought. It may be total turnover as shown in the audited balance sheet or part thereof. Necessary clarification shall be obtained from the Chartered Accountant whose audited balance sheet is submitted by the applicant firm in case considered necessary by the Registering Authority.

7. Upgradation of enlisted contractor shall be done gradually in stages. Before a contractor is considered for upgradation, he should have worked at least for two years in the present tendering limit and should meet the criteria laid down. Normally upgradation will be done only to one next higher class at a time. However, if performance of any particular contractor is of very high order and Registering Authority considers upgradation of such contractor by more than one class justified, the same shall be done only with prior approval of E-in-C's Branch. Following considerations shall be applied to ascertain whether the performance of contractor is of very high order or otherwise:

ANNEXURE TO NIT (CONTD)

(a) Contractor has completed works, value of which is more than 1.25 times the requirement in which the upgradation is being considered.

(b) Average Annual Turnover of the contractor is more than 1.25 times the requirement in which the upgradation is being considered.
Example: For a contractor enlisted in class 'C' having tendering limit of 100 lakh, proposed to be upgraded to class 'A, having tendering limit of 7.50 crore, minimum value of works completed and turn over shall be as under :

(i) Two works completed costing not less than 5.00 crore each (1.25 x 4.00)
Or
One work costing not less than 7.50 crore (1.25 x 6.00)

(ii) Average annual turnover 7.5 crore (1.25 x 6.00)

(c) Average marks secured in Performance Reports (Stage-li) for the works completed in last five years shall not be less than 70 % . Where report for any work is not available, it will be deemed to contain only 60 % average marks.

8. Contractors of 'A' class and above only shall be eligible for enlistment in categories (a) (iii) Runways and Pavements and (a)(iv) Marine and Harbour Works subject to prior approval of E-in-C.

9. The criteria laid down above for enlistment/ upgradation may be relaxed in the case of contractors whose performance has been found to be of a very high order. Such relaxation may, however be given only with the prior approval of E-In-C's Branch.

1.5 Documents required to be submitted by the contractor for enlistment in MES

(a) Application for enrolment as contractor on IAFW-2190 (Revised 2020). Coloured Photographs affixed on application shall be self-attested.

(b) Affidavit for constitution of firm.

(c) List of works executed during last five years (As per Appendix 1.2) including copies of Work Orders/Work allotment letters, Copies of completion certificates and Form 16A/ TDS certificate for GST (GSTR-7A)

(d) Annual turnover certificate duly supported with audited balance sheet. The turn over certificate must bear the UDIN (Unique Document Identification Number). The turn over certificate and audited balance sheet should be from same Chartered Accountant. In case balance sheets are not audited, Form 26 AS and *I or* Annual GST return shall be forwarded in support of turnover.

(e) Audited balance sheet of last five years in case of Limited companies

(f) Solvency certificate from scheduled bank as per specimen given in Appendix- 1.3

(g) Working Capital certificate from scheduled bank as per specimen given in Appendix- 1.3

ANNEXURE TO NIT (CONTD)

(h) Affidavit from contractor that there is no Government dues/ recovery outstanding against him. If there is any Government dues/recovery outstanding from the contractor, enlistment/ upgradation shall not be carried out.

(j) Affidavit from contractor giving brief details of arbitration / litigation cases he was involved in. Registering Authority will critically examine such details and if contractor is considered habitual litigant, his enlistment/ upgradation shall not be carried out. Contractor shall be deemed to be a habitual litigant if he moves the court more than once ignoring arbitration clause and court does not uphold his view.

(k) Two self-attested photographs of Proprietor/Partners/ Directors of firm for verification of character and antecedents from the police authorities. Places where online police verification process is available, the contractor will carry out police verification of the Proprietor/Partners/Directors and submit the verification reports for cross verification by the Department. Alternatively the contractor may submit a copy of valid passport issued by Govt of India.

(l) Copy of partnership deed in case of partnership firm.

(m) Memorandum and Articles of Association in case of Limited Companies.

(n) Copy of Registration Certificate of firm with Registrar of Companies/Register of Firms.

(o) Affidavit that no near relative(s) of the contractor or his/their employees/agents is/are working as Gazetted/ Commissioned Officer(s) in MES/ Corps of Engineers/Ministry of Defence. If the near relative(s) is/are working in such capacity in any formation upto Zonal CE/CCE, he/ they shall furnish details. The contractor shall not be entitled to tender for the works in entire area of CE Zone/CCE.

(p) Affidavit that no near relative(s) of the contractor or his/their employees/agents is/are working as Junior Engineer(s) in MES/Corps of Engineers. If his near relative(s) is/are working in such capacity in any formation upto CWE/ GE(I) office, the contractor shall furnish details. The contractor shall not be entitled to tender for the works in entire area of that CWE/GE(I).

(q) Copy of power of attorney/Resolution of the Board infavourof any Partner/ Director of the firm.

(r) Copy of immediate last Income Tax Return.

(s) A separate sheet containing specimen signatures (signed in black ink) and affixed with photographs of Proprietor/Partners/Directors (to be used as Appendix ‘ B’ of enlistment letter.

(t) Self-attested copy of PAN Card of Proprietor, Partners, Directors and the firm/ Company.

(u) Self-attested copies of GST registration, EPFO registration and ESIC registration certifcates.

ANNEXURE TO NIT (CONTD)

Notes :-

(i) All the documents submitted by the contractor shall be signed by Proprietor/ all Partners/ all Directors unless specifically authorized to a Partner/ Director through POA or Resolution of the Board.

(ii) Photocopies of documents shall be self-attested. Registering Authority shall ask production of original documents to verify the photocopies.

(iii) All affidavits shall be given on non-judicial stamp paper of appropriate value duly signed by the contractor and attested by the Magistrate/Notary public.

(iv) Registering Authority shall cross-verify the genuineness of financial documents at Para (d) & (e) above from issuing Chartered Accountant (CA) and documents at Para (f) & (g) from the concerned Bank branch by referring in writing to them alongwith copy of above documents submitted by contractor. Registering Authority is also at liberty to verify the genuineness of all the documents from other reliable/authentic sources.

(v) All documents related to work experience and turnover (except Form 26AS and portal-generated GST return) shall be got independently verified from the client/issuing Authority. For documents in support of works experience, TDS certificate for IT/Sales Tax /VAT/GST shall also be asked from applicant firms. Registering Authorities may seek clarifications from the Chartered Accountant in case of any doubt.

(vi) Documents mentioned at Para 1.5 (a) and 1.5 (s) shall not be applicable for the purpose of documents to be uploaded for bidding purpose by unenlisted firms.

Signature of Contractor
Dated :

AGE (Contracts)
for Accepting Officer

Signature Not Verified

Digitally signed by ASHISH RANJAN SINHA
Date: 2024.07.26 04:06:36 IST
Location: Ministry of Defence-MES